

25VECV02700 25VECV02700

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-29

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES

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Case Number: 25VECV02700 Hearing Date: July 29, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

MARIA CUADRAS, an individual,

Plaintiff,

vs.

FORD MOTOR

COMPANY; and DOES 1 to 10, inclusive,

Defendants.

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CASE

NO: 25VECV02700

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEY
FEES

Dept.

I

DATE:

JULY 29, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: May 14, 2026

TRIAL

DATE: NONE

I.

BACKGROUND

On May 14, 2025, Plaintiff Maria Cuadras (“Plaintiff”) filed a complaint against Defendant Ford Motor Company (“Defendant”) alleging four causes of action: (1) Breach of Implied Warranty of Merchantability; (2) Breach of Express Warranty; (3) Violation of Civil Code section 1793.2(b); and (4) Violation of Civil Code section 1793.2(d)(2).

On June 15, 2026, Plaintiff filed a notice of settlement of entire case.

On June 24, 2026, Plaintiff filed the instant motion for attorneys’ fees.

On July 15, 2026, Defendant filed its opposition.

On July 22, 2026, Plaintiff filed her reply.

II.

LEGAL

STANDARD

A

prevailing party is entitled to recover its attorneys’ fees when authorized by contract, statute, or law. (Cal. Code of Civ. Proc. § 1033.5(a)(10); Cal. Civ. Code § 1717(a).) “To ‘incur’ a fee, of course, is to “become liable” for it . . . i.e., to become obligated to pay it.” (Rope v. Katz (1995) 11 Cal.4th 274, 280.)

Courts begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess whether there was padding, overstaffing, duplication, or marked inefficiency. (Donahue v. Donahue (2010) 182 Cal.App.4th 259, 272.) The prevailing party who seeks fees and costs bears the burden of establishing entitlement to an award and documenting the

appropriate hours expended and hourly rates. (*Christian Research v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.) To that end, the Court may require a party to produce records sufficient to provide a proper basis for determining how much time was spent on particular claims. (*Ibid.*) The evidence should allow the Court to consider whether the case was overstaffed, how much time attorneys spent on particular claims, and whether the hours were reasonably expended. (*Ibid.*) The Court has discretion to award fees based on the attorney's declaration describing the work they have done and based on the judge's own view of the number of hours reasonably spent. (*Syers Props. III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 698.)

III.

DISCUSSION

Pursuant to the Song-Beverly Consumer Warranty Act (the "Act"), a consumer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) This provision "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.)

Plaintiff seeks

\$35,700.25 in fees, costs, and expenses, consisting of (1) \$4,987.50 for Jacqueline Mandel for 9.5 hours of work at an hourly rate of \$525.00; (2) \$18,165.00 for Raymond Velarde for 34.6 hours of work at an hourly rate of \$525.00; (3) a 0.5 Lodestar multiplier of \$11,576.25; and (4) \$971.50 in costs. (Memorandum of Points & Authorities ["MPA"], p. 9; see also Mandel Decl., ¶ 2, Ex. 1; Velarde Decl., ¶ 2, Ex. 1.)

Defendant argues Plaintiff's

fees should be reduced as the case settled before trial without a single deposition taking place. (Opp., p. 1.) Defendant requests reduced hourly rate of \$375.00 for Mr. Velarde and \$300.00 for Ms. Mandel, and for the Court to apply a reduction of no less than 30 percent to

the claimed Lodestar hours to account for the categories of unreasonable billing. (Opp., p. 9.) In total, Defendant requests the Court limit the attorneys' fee award to no more than \$11,085.00, comprised of 24.2 hours for Mr. Velarde at \$375.00 per hour and 6.7 hours for Ms. Mandel at \$300.00 per hour, with no multiplier enhancement. (Opp., p. 9.)

A.

Entitlement to Fees

Plaintiff argues she is the prevailing party and is entitled to recover attorneys' fees from Defendant pursuant to the Song-Beverly Act and the parties' 998 Offer. ("the Offer".) (MPA, p. 6.) Pursuant to the Offer, Defendant agreed to pay Plaintiff's attorneys' fees, costs, and expenses by motion. (MPA, p. 6.) It is undisputed Plaintiff is the prevailing party.

B. Reasonableness of Counsel's Rate

A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095.)

This case was staffed

by attorneys Jacqueline Mandel and Raymond Velarde. (Mandel Decl., ¶ 1; Velarde Decl., ¶ 1.) Both Ms. Mandel's and Mr. Velarde's hourly

rate is \$525.00. (Mandel Decl., ¶ 2; Velarde Decl., ¶ 2.) Plaintiff contends counsel's hourly rates are reasonable and in line with prevailing market rate. (MPA, p. 9.)

In opposition,

Defendant argues Plaintiff's hourly rates must be reduced because Plaintiff fails to proffer evidence regarding the prevailing rate for comparable attorneys and litigation. (Opp., p. 4.) Defendant argues the cases cited by Plaintiff's counsel are predominantly federal district court decisions that carry limited persuasive value considering federal litigation is more complex than a routine Song-Beverly matter. (Opp., p. 4.)

In reply, Plaintiff

argues Defendant has not properly established Plaintiff's requested hourly rates are unreasonable. (Rep., p. 2.)

Plaintiff contends \$525 is the prevailing rate for both Mr. Velarde and Ms. Mandel, as both have been practicing attorneys for nearly a decade and have been involved in California lemon law for most of their careers. (Rep., p. 3.)

The Court finds

Plaintiff's hourly rates are reasonable.

Mr. Velarde's and Ms. Mandel's declarations provide an overview of their experience and credentials. (See Mandel Decl., ¶ 3, and Velarde Decl., ¶ 3.) Both have been licensed to practice

in California for nearly ten years, and have both spent most of their careers working with the California Song-Beverly Act. (Mandel Decl., ¶ 4, and Velarde Decl., ¶ 3.) To justify their rates, Mr. Velarde and Ms.

Mandel cite several cases where similar hourly rates were recently affirmed. (See Mandel Decl., ¶ 4, and Velarde Decl., ¶ 4.) Based on the evidence provided and the court's own experience with the billing rates of other Song-Beverly attorneys in the Los Angeles area, the Court finds that the billing rates are reasonable.

C. Reasonableness of Claimed Hours

Defendant

claims 9.5 hours of work for Ms. Mandel and 34.6 hours of work for Mr. Velarde. (Mandel Decl., ¶ 2, and Velarde Decl., ¶ 2.)

Defendant argues the time claimed

by Plaintiff's counsel is unreasonable because the claimed hours fall into several categories of unreasonable billing, including clerical and administrative work, overbilling on template documents, and recovery on work not yet performed. (Opp., pp. 6-7.)

In opposition, Plaintiff

argues the hours expended are reasonable. (Rep., p. 3.) Plaintiff contends it is the attorney's responsibility, not their administrative team, if a hearing or Court order is missed, thus administrative work is recoverable as attorney work. (Rep., p. 4.) Plaintiff argues billing related to template and form documents is justified because complaints and discovery responses are distinct and require an attorney's attention. (Rep., p. 4.)

First, the Court

disagrees with Plaintiff's assertion that administrative work is recoverable as attorney work. Purely clerical or

secretarial tasks should not be billed at a lawyer or paralegal's usual rate, regardless of who performs them. (*Missouri v. Jenkins* (1989) 491

U.S. 274, 288, fn. 10.) Calendaring, preparing proofs of service,

internal filing, preparing binders for a hearing, and scanning are examples of tasks that have been found to be purely clerical and thus non-compensable

or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179,

1187; *Ridgeway v. Wal-Mart Stores Inc.* (N.D. Cal. 2017) 269

F.Supp.3d 975, 991.) The Court therefore

reduces Ms. Mandel's hours by 0.7 and Mr. Velarde's hours by 0.5 for clerical tasks.

Second, the Court appreciates the

realities of high-volume, formulaic lemon law practice; however, the Court

cannot presume, based on similar filings in other cases, that counsel did not perform work in this one. The Court declines to make the assumption

that counsel's work is templated or adjust counsel's hours accordingly. However, the Court notes excessive billings, specifically with Mr. Velarde's review of initial disclosures. Mr. Velarde

bills 11.8 hours for reviewing these disclosures. The Court finds this amount excessive due to

Mr. Velarde's experience with Song-Beverly Act actions. The Court therefore reduces this amount to 7 hours.

Finally, Plaintiff does not submit

an updated declaration stating how many hours were actually spent reviewing Defendant's opposition and preparing a reply.

The court must base its award of attorney's fees on "actual time expended." (Civ. Code, § 1794, subd.

(d).) The plain language of Section

1794, subdivision (d) necessarily precludes an award based on speculative fees.

Here, Ms. Mandel anticipates 4.1

hours in connection with reviewing the opposition, drafting the reply, and

attending the hearing. (*Mandel Decl.*, ¶ 2; Ex. 1.) Anticipated fees are speculative and not recoverable as "actual time expended." (Civ. Code, § 1794, subd. (d).)

The Court therefore reduces the Ms. Mandel's hours by 4.1 for anticipated fees.

The Court thus awards 29.3 hours for Mr. Velarde and 4.7 hours for Ms. Mandel, reduced from 34.6 hour for Mr. Velarde and 9.5 hours of work for Ms. Mandel.

D. Multiplier

Defendant argues a multiplier is not warranted, as this is a routine Song-Beverly case involving no trial, depositions, dispositive motions, or novel legal issues. (Opp., p. 8.)

In opposition, Plaintiff argues a multiplier enhancement is appropriate due to the skill displayed by counsel, the risks in taking a case on a contingency basis, and delay in payment. (Rep., pp. 5-6.)

A lodestar multiplier is an accepted and common practice in cases where counsel works on a "pure contingent basis" due to the "risks associated with the case." (See *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399.) However, a court has discretion to decrease the lodestar by looking at factors including "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

The factors that courts look at to determine if a multiplier is reasonable are: "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses*, (2001) 24 Cal.4th 1122, 1132.)

Here, there is no evidence that this case involved any novel issues or required exceptional skill. Thus, there is no basis for a multiplier.

Accordingly, Plaintiffs'

request for a multiplier is denied.

E. Costs

Plaintiff requests \$971.50

in costs related to Plaintiff's counsel's advancement in costs and expense in this matter. (Velarde Decl., ¶ 2.) Defendant does not address Plaintiff's costs in its opposition, and the costs appear to be reasonable on their face.

Accordingly, the Court
will award the requested costs.

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IV.

CONCLUSION

Based on
the foregoing, Plaintiff's motion for attorney fees is GRANTED.

The Court awards Plaintiff's counsel \$18,821.50
in attorney fees and costs, consisting of 29.3 hours at an hourly rate of \$525.00
for Mr. Velarde, 4.7 hours at an hourly rate of \$525.00 for Ms. Mandel, and
\$971.50 in costs.

Moving
party to give notice.

Dated July
29, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court